

HOUSE No. 2079

The Commonwealth of Massachusetts

PRESENTED BY:

Mike Connolly

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to provide paid family and medical leave to educators and municipal employees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>1/16/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>6/18/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>7/22/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>5/20/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/31/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/28/2026</i>

HOUSE No. 2079

By Representative Connolly of Cambridge, a petition (accompanied by bill, House, No. 2079) of Mike Connolly and Danillo A. Sena for legislation to provide paid family and medical leave benefits for educators and municipal employees. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to provide paid family and medical leave to educators and municipal employees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 175M of the General Laws is hereby amended by
2 striking the definition of “employer” and inserting the following:-

3 "Employer", shall have the same meaning as provided in subsection (i) of section 1 of
4 chapter 151A; provided, however, that an individual employer shall be determined by the
5 Federal Employer Identification Number; provided further, that, notwithstanding any general or
6 special law to the contrary, the PCA quality home care workforce council established in section
7 71 of chapter 118E shall be the employer of personal care attendants, as defined in section 70 of
8 said chapter 118E, solely for the purposes of section 6 and consumers, as defined in said section
9 70 of said chapter 118E, shall be considered the employers of personal care attendants solely for
10 the purposes of the notice requirements set forth in subsections (a) and (b) of section 4 and
11 subsection (d) of section 8; provided further, that, notwithstanding any general or special law to
12 the contrary, the department of early education and care shall be the employer of family child

care providers, as defined in subsection (a) of section 17 of chapter 15D, solely for the purposes of section 6 and the notice provisions set forth in subsections (a) and (b) of section 4 and subsection (d) of section 8; provided further, that, notwithstanding any general or special law to the contrary, a school district as defined in section 2 of chapter 70 or an education collaborative as established under section 4E of chapter 40 shall be considered a covered employer and shall not be subject to section 10 of this chapter; provided further, that any employer not subject to this chapter may become a covered employer under this chapter by notifying the department of family and medical leave and completing the procedure established by the department; and provided further, that a municipality, district, political subdivision or its instrumentalities shall not be subject to this chapter unless it adopts this chapter under section 10.

SECTION 2. Section 2 of said chapter 175M is hereby amended by striking out subsection (f) and inserting in place thereof the following subsection: -

(f) Notwithstanding subsection (e) or any other general or special law to the contrary, the taking of family or medical leave shall not affect an employee's right to accrue vacation time, sick leave, bonuses, advancement, seniority, length-of-service credit, creditable service as defined in section 1 of chapter 32, or other employment benefits, plans or programs. During the duration of an employee's family or medical leave, the employer shall provide for, contribute to or otherwise maintain the employee's employment-related health insurance benefits, if any, at the level and under the conditions coverage would have been provided if the employee had continued working continuously for the duration of such leave.

SECTION 3. Section 6 of said chapter 175M is hereby amended by adding after subsection (c) (2) the following subsections: -

(3) For a school district as defined in section 2 of chapter 70 or an education collaborative as established under section 4E of chapter 40 the required employer's portion of the contribution for medical leave pursuant to (c) (1) and family leave pursuant to (c) (2) of this section shall be paid for and remitted to the trust fund by the commonwealth.

(4) A Municipality may adopt this chapter for municipal employees and/or bargaining units of municipal employees pursuant to Section 10 of this chapter, provided that for all such employees the required employer's portion of the contribution for medical leave pursuant to (c) (1) and family leave pursuant to (c) (2) of this section shall be paid for and remitted to the trust fund by the commonwealth.